

TESIS

**ANALISIS YURIDIS TERHADAP PEMIDANAAN PENGGUNA
NARKOTIKA JENIS SABU DALAM PERSPEKTIF
KETENTUAN REHABILITASI**

Untuk Memenuhi Persyaratan Penyelesaian Program Studi Magister Hukum (S2)
Programa Pascasarjana Universitas Borobudur



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**LEMBAR PERSETUJUAN
KOMISI PEMBIMBING TESIS
PROGRAM MAGISTER HUKUM
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Judul: ANALISIS YURIDIS TERHADAP PEMIDANAAN PENGGUNA
NARKOTIKA JENIS SABU DALAM PERSPEKTIF KETENTUAN
REHABILITASI

Telah disetujui oleh:

Pembimbing

Tanggal

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- jul.
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(Dr. H. Boy Nurdin, SH, MH)

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ABSTRACT

This study aims to analyze the legal framework governing the rehabilitation of methamphetamine (shabu) users within the Indonesian positive legal system, to examine the implementation of rehabilitation provisions in criminal sentencing practices, and to formulate an ideal model for the implementation of rehabilitation capable of realizing legal certainty, justice, and legal expediency. This research employs a normative legal research method using statutory, conceptual, case, and analytical approaches. The legal materials consist of primary, secondary, and tertiary legal sources, which are analyzed qualitatively through a descriptive-analytical method. The findings reveal that the legal framework governing rehabilitation has been comprehensively regulated under Law Number 35 of 2009 on Narcotics and its implementing regulations, which provide the legal basis for medical and social rehabilitation for narcotics addicts and victims of narcotics abuse. Nevertheless, the implementation of these provisions in judicial practice has not yet been fully effective, as imprisonment remains the dominant sanction imposed on methamphetamine users, the integrated assessment mechanism has not been optimally implemented, and differences in legal interpretation persist among law enforcement authorities. From the perspectives of the Rule of Law Theory, the Theory of the Objectives of Law, and the Theory of Legal Protection, rehabilitation constitutes a more appropriate form of legal protection for narcotics users who meet the legal criteria as addicts or victims of narcotics abuse. Therefore, the ideal model for implementing rehabilitation should be realized through strengthening the integrated assessment mechanism, harmonizing policies among law enforcement agencies, enhancing the institutional capacity of rehabilitation facilities, and consistently applying rehabilitation provisions in order to establish a criminal justice system that upholds legal certainty, justice, and legal expediency for society.

Keywords: *Rehabilitation; Narcotics Users; Methamphetamine (Shabu); Criminal Sentencing; Legal Certainty.*



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Ujian Sidang Tesis yang berlangsung untuk menyempurnakan Tesis yang di uji, masing-masing i memberikan usulan sebagai berikut :

- 1/ Lengkapi CV nya ! (Kotakan !).
- 2/ Abstract supaya di sempurnakan !
- 3/ kata "analisis" bisa diganti dengan kata "penyusunan"
(pada judul) !

Jakarta, 08 Agustus 2026

Anggota,

Ketua

Dr. H. Boy Nurdin, SH, MH